accountability conferred on each, firsthand, legitimacy as an agent of the people. Indeed, our Constitution's democratic element consisted mainly in reserving to these men the great decisions on the use of force. By contrast, the new circle is appointive or co-optive: congressmen may enter it and so may private citizens when their service as surrogates is wanted by a President. But mostly, and continuously, those assured an entry are the President's own appointees: department heads, Chiefs of Staff, White House aides, and others whose institutional positions or personal relations make their presence virtual necessities for him. As this implies, they are by no means "mere" subordinates. He is no freer than he would have been with Congress to ignore them. But neither are they colleagues in the sense of sharing either his legitimacy or accountability. Nowadays those rest with him alone.

Consider again the group that made fundamental choices for the United States during the missile crisis. Who were the members?

First, there was the President as constitutional Commander in Chief, nationally elected. No other elective officer was so involved (save the Vice-President, an appropriately attentive listener). No member of the Senate or House stands astride the action channel for decisions on nuclear war. None is consulted unless the President so chooses as a matter of discretion. In October 1962, Congress remained ignorant of the Soviet missiles in Cuba during the first week of Ex Comm deliberations. Only on October 22, two hours before his broadcast to the world, did the President assemble the leaders of both houses, advise them of the missiles, and inform them that he had decided to respond with a naval quarantine. The Congressional leaders disagreed strongly with the course the President had chosen. Senator Fulbright in particular urged that the United States respond more forcefully. Senator Russell stated that "he could not live with himself if he did not say in the strongest possible terms how important it was that we act with greater strength." The Senators insisted that the record show they had been informed, not consulted. But Congressional objections had no effect at that point. Nor was any member of Congress deeply involved in subsequent decisions during the week that followed.

Second, there were several men whose institutional positions made them unavoidable parties to any major choice about nuclear war: the Secretary of Defense, the Secretary of State, the Director of the Central Intelligence Agency, the Chairman of the Joint Chiefs of Staff, and the White House Assistant for National Security Affairs. Why were these men involved of *necessity?* Because each had a portion of the